

Court No. - 48

Case :- WRIT - C No. - 13262 of 2021

Petitioner :- M/S Bismillah Rice Mill Through Its Partner Shakeel Ahmad

Respondent :- Madhyanchal Vidyut Nigam Limited

Counsel for Petitioner :- Govind Krishna, Sadaful Islam Jafri

Counsel for Respondent :- C.S.C.

Hon'ble Munishwar Nath Bhandari, J.

Hon'ble Ajai Tyagi, J.

This writ petition has been filed to challenge the order dated 10.04.2021 passed by the respondents after the judgment of this Court in the earlier writ petition of the petitioner.

The facts of this case shows that the respondents issued a provisional assessment notice on 28.01.2021 inviting reply from the petitioner. The reply to the notice was not given thus, a final assessment order was passed on 19.02.2021. The writ petition was thereupon preferred by the petitioner to challenge it though remedy of appeal under section 127 of Indian Electricity Act, 2003 (hereinafter referred to as 'the Act of 2003') was available. The Division Bench of this Court while deciding the earlier writ petition No. 7624 of 2021 vide its judgment dated 25.03.2021 directed the respondents to pass a fresh order after giving an opportunity of hearing to the petitioner. A fresh assessment order was passed by the respondents and has been assailed herein. It is mainly on the ground that the petitioner was not involved in theft yet after making allegations a huge amount has been assessed finally. The issue as to whether the petitioner was involved in theft or not needs to be decided by this Court and thereby writ petition has been preferred again to challenge subsequent order. It is also on the ground that the order subsequent to the judgment of this Court in the first writ petition contain the same reasons for making final assessment thereby the authorities did not apply their mind to deal with the issues raised by the petitioner. The order impugned herein thus deserves to be set aside as remedy of appeal under section 127 of the Act of 2003 cannot be said to be efficacious in view of the heavy demand running in crores. The petitioner has accordingly preferred this writ petition alleging that without a theft, provisional assessment as well as final assessment order has been issued.

We have considered the submissions made by counsel for the petitioner.

The facts taken note by the Co-ordinate Bench in earlier writ petition shows that the provisional assessment notice dated 28.01.2021 was issued on the petitioner calling for his reply. The reply to the provisional notice was not given by the petitioner within the time frame and thereby final assessment order was passed on 19.02.2021. The reply was not submitted despite service of provisional assessment notice on 02.02.2021. This Court on earlier occasion directed the respondents to pass fresh order and the final assessment order dated 19.02.2021 was made subject to the fresh order. The petitioner is said to have raised

objections and are being determined by the impugned order dated 10.04.2021.

It is not in dispute that an appeal lies against the final assessment order under section 127 of the Act of 2003. The petitioner has failed to prefer an appeal despite involvement of question of facts. Whether theft took place or not is a factual issue, thus, cannot be determined by us while exercising extraordinary jurisdiction under Article 226 of the Constitution of India. No reason has been given as to why the appeal has not been preferred by the petitioner other than to say that 50 per cent amount is to be deposited to maintain the appeal. It is without an allegation that the demand has been raised without authority of law or by an incompetent officer or even going contrary to the record. In such factual situation, we do not find the writ to be maintainable as otherwise efficacious remedy of appeal under section 127 of the Act of 2003 is available.

The issue now is as to whether the authority while passing the order on 10.04.2021 has applied its mind or not. The allegation against the petitioner is of the theft of electricity which has been disputed by him but finding no reason to accept the plea aforesaid, a final assessment order has been passed. The impugned order cannot be said to be in ignorance of the objections raised by the petitioner. It is not that mere making statement that no theft took place, it is to be accepted. More so, it was video-graphed indicating theft of electricity. This was even noticed by the Co-ordinate Bench even while disposing of the earlier writ petition and for ready reference, relevant para of the said judgment is quoted hereunder:

"From a perusal of the provisional assessment notice dated 28.01.2021, which categorically records that on inspection, it was found that an external device was installed in PT output circuit and by using the said device the petitioner was making theft of electricity. The PT device which was allegedly installed by the petitioner had been sealed and the entire inspection had been video-recorded.

In view of the said facts indicated in the provisional assessment notice, it cannot be said to be a case of defective meter rather it was of theft of electricity by using an external device which would not fall within the provisions of Clause 5.6 of the U.P. Electricity Supply Code, 2005. In a case of theft of electricity, the provision as contained in Clause 8.1 of the Electricity Supply Code, 2005 have to be adhered to i.e. the procedure prescribed therein for granting opportunity to the consumer has to be followed.

From the record of the writ petition, it is evident that the provisional assessment notice dated 28.01.2021 had been served on the petitioner on 02.02.2021. He, admittedly, did not file any reply to the same.

It is intimated by the learned counsel for the respondents that a final assessment order dated 19.02.2021 has already been passed.

Considering the above and the provisions of Clause 8.1 (a) and (b) of the U.P. Electricity Supply Code 2005, this Court is of the considered view that one more opportunity may be given to the petitioner to submit his objections in accordance with the provision of Clause 8.1 of the U.P. Electricity Supply Code, 2005.

In view thereof the writ petition is disposed of as follows:-

(1) The petitioner shall submit his objections to the provisional assessment notice dated

28.01.2021 within two weeks from today alongwith the copy of this order. In case, such an objection is filed the respondent no.4 would be under obligation to deal with the same and pass a reasoned and speaking order, in accordance with law on all points of objections raised by the petitioner. The final assessment order dated 19.02.2021 shall be subject to the fresh order to be passed by respondent no.4.

However, in case, the petitioner fails to file his objection within the time given above, it would be open for the respondent no.4 to proceed in accordance with law."

The Court was of the opinion that in case of use of external device, Clause 8.1 of the Electricity Supply Code, 2005 would apply and thereby an opportunity of hearing is to be provided. The respondents had otherwise complied the provisions given under the Code by serving a notice on 02.02.2021. The petitioner did not give reply to it, thus, final assessment order was issued on 19.02.2021. The Co-ordinate Bench yet gave one more opportunity to the petitioner to raise objection to the provisional assessment order though strictly going by the provisions of law, it was not required and that too after the final assessment order because remedy of appeal was available to the petitioner where even questions of facts can be determined. In any case now after providing an opportunity again to the petitioner, the impugned order has been passed which cannot be said to be a non-speaking or unreasoned order.

In view of the above, we do not find any merit in the writ petition rather the petitioner is having remedy of appeal under section 127 of the Act of 2003 thus was to be availed in the facts and circumstances of this case. It is more so when disputed questions of facts are involved herein and can be dealt with by the appellant authority.

Thus, present writ petition is dismissed.

However, petitioner is given opportunity to avail the remedy of appeal under section 127 of the Act of 2003 and if appeal is preferred within 15 days from today then it would be decided on merit and not be dismissed on the ground of limitation.

The appeal would obviously be maintained as per provisions contained under section 127 of the Act of 2003 and the rules made thereunder. The condition of pre-deposit to maintain appeal would be satisfied.

Order Date :- 25.6.2021/Madhurima